FAMILY LAW

⇒ Family law is a branch of law that deals with matters relating to family relationships, such as marriage, divorce, adoption, maintenance, guardianship and succession.

Main Aims to :- protect & regulate personal laws.

→ Indian family law is not uniform law. It is personal law means diff religious communities are governed by their own set of laws.

like

1. Hindu law (includes Bhoddhists, Jains & Sikhs)

H·MA 1955, HSA 1956

Hindu Minority & Guardianship Act, 1956

Hindu Adoption & Maintenance Act, 1956

2. Muslim law

Based on Islamic shariat law

Muslim personal law (shariat) Application Act 1937, and

Dissolut" of Muslim Marg Act, 1939.

Christian law

Indian christian Marg Act, 1872

Divorce Act, 1869.

Parsi law

Parsi Marg & Divorce Act, 1936

Secular laws (for ~~inter~~ faith marges)

Special Marg Act, 1954

Indian Succession Act, 1925

(others who are not governed by personal laws).

Areas Covered under family law

1. Marg & Divorce
2. Maintenance & Alimony
3. Adoption & Guardianship
4. Custody of children
5. Succession & inheritance.

UNIT-I

Sources of family law

(1.) Shruti (src - to hear)

⇒ What is heard

Vedas & upanishads

↓

Earliest sources of Hindu laws

4 Vedas, 6 Vedangas, upavedas, 108 upanishads

I. Vedas

Vid → to know

Vedas means knowledge (Sanskrit)

⇒ there are four vedas.

1. Rig veda - contains hymns భజన / స్తోత్రం / పూజ వే
(praises prayers to god) (devotional songs prayers)

2. Yajur veda - deals with rituals & Sacrifies
(Marg, thread ceremonies)

3. Sama veda - has chants & melodies
(used in rituals)

4 Atharva veda - Includes daily prayers & philosophy.

→ They are foundation of hindu law as they contain moral & spiritual principles.

eg:- Truth, duty (Dharma), non-violence etc

↓

Way of Living.

→ Shruti means it refers to the knowledge directly heard or revealed to the ancient Sages (Rishis) by God during meditation.

→ So it is considered as holy/Sacred, divine & unquestion authority in Hindu law & religion. (పవిత్ర/దైవికమైన)

Key moral principles

* Truthfulness
* Non-violence
* purity
* charity
* Duty towards family & society (dharma)

These principles guide laws relating to marriage family relations, & inheritance.

→ Shruti is considered as ultimate source of dharma.

II. Upanishads

(Concluding portions of Vedas)

Upanishads also called as Vedanthas

↓

Upa - Near (to sit down near)

Ni - down

Shad - to sit

⇒ 108 upanishads

Students sitting near their guru to recieve Secrete or spiritual knowledge.

III Vedangas (Limbs of Veda)

6 Vedangas → Veda - knowledge

Anga - Limb + part

⇒ they helps in writing, reading & enchanting mantras.

→ Vedangas assist people in memorising / Learning

(i) Correctly reciting the vedic hymns

(ii) properly understanding their meaning &

(iii) performing rituals as prescribed in the Vedas

they are support tools to understand Vedas.

6 Vedangas

1. Shiksha (pronounciation) (teaches how to pronounce Vedic words correctly)

2. Kalpa (Rituals & Ceremonies)

(prescribes rules for performing rituals, rites like marriage etc)

3. Vyakarana (Grammar) (explains the rules of Sanskrit grammar to preserve purity of Vedic language).

4. Nirukta (Etymology or Word Meaning) (Explains meaning of difficult vedic words)

Study of words

→ Helps in correct interpretation.

5. Chandas (Metre prosody) Deals with Vedic hymns

How they are chanted rhythmically.

6. Jyotisha (Astronomy/Astrology) helps to determine the right time for rituals.

→ So vedangas helps in understanding & performing Vedic duties correctly.

Though they are not law themselves, they Contribute to moral & ritual foundation of Hindu law.

IV. Upavedas

derived from vedas or applying knowledge to practical areas of life.

4 upavedas

each linked to a specific associate veda.

1. Ayurved (Rig veda) - Medicine & health
(Science of life & healing)

2. Dhanurveda (yajur veda) - Military science
warfare, archery & defense.

3. Gandharva veda (Sama Veda) - Music, dance, Arts

4. Artha veda (Atharva veda) - Economics,
politics, governance & Administration.

(2) Smritis

→ Dharmasutras (early short rules of dharma)

→ Dharmashastras (Later detailed law of dharma)

Written by Ancient sages based on Smriti

Important Smritis

(i) Manu smriti

Written by Manu

Given special states to Brahmins

No rights for women & shudras

(ii) Yajnavalkya smriti

Recognised some rights to women

→ inheritance rights.

Gave better status to shudras.

(ii) Narada Smriti

Written by Narada

Recognized some rights for women

↓

Re-marriage rights to widows.

Shruti's → Way of living

Smriti's → Rights of individual.

→ As there is no legally recognised law by mixing these new law is created

(3). Digests and Commentaries

↓ ↓

Scholar explaining a law book.

Collection of rules form book

Digests — collection of legal rules form Smritis

Commentaries - Explaination written by scholar to clarify a law text

Commentaries

Mitakshara

↓

By Vijnaneshwara

↓

(i) Applicat° of hindu laws across territory of India except states of Bengal & Assam.

(ii) Covers all elements of Hindu law including rules of Succession, partition, debt & Stridhan.

↓

led to Mitakshara School

Dayabhaga

↓

By Jimutavahana

↓

(i) Applies only in areas of Bengal & Assam & in areas where mitakshara is silent

(ii) Mainly focuses on inheritance & partition → Sons right to Coparcenary property partition inheritance & Stridhan.

↓

led to Dayabhaga School.

④ Customs & Usages

practised from long time

Usage :- Current or practical practise followed by people.

Custom is a long established practice that is accepted by a particular community.

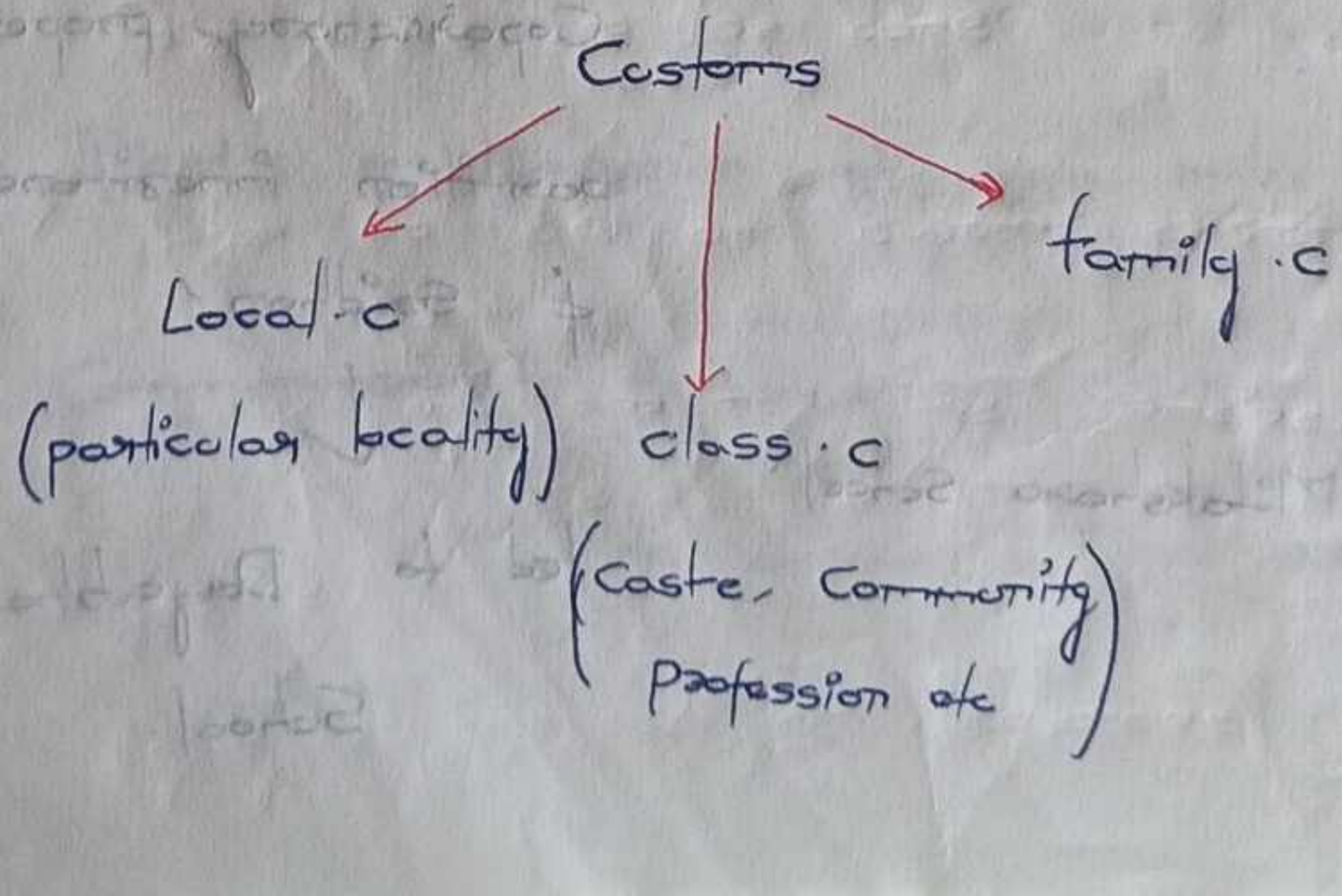
Essentials of Valid custom

(i) Ancient - practised for generations

(ii) Certain - clear & definite

(iii) Reasonable - Not harmful

(iv) Not against law or morality



Modern Sources of Hindu law

Modern sources are codified, written & judicially recognised laws that evolved after ancient Sources.

Were supplemented by legislation & Courts.

1. Legislation (Act / statutes)

↓

Laws made by parliament or state legislatures.

they are authoritative & binding.

eg:- H.M.A & H.S.A etc.

2. judicial decisions (case law / precedents)

(141 of Indian Constitution).

→ The decision given by SC are binding on all lower courts including H.C

→ But Apex court itself is not strictly bound by it & can change the law or interpretation

→ Similarly, the decisions rendered by H.Cs binding on subordinate courts, but such decisions do not bind on other H.C

Judicial decision → judgment of court in a particular case.

(3) precedent ((Vishaka guidelines, Vineeta sharma)

Means a judicial decision of a Higher court that is followed by lower courts in similar cases.

Sarla Mudgal Vs U.O.I (Hindu men converting to Islam to marry a second wife)

(4) Equity, justice & Good Conscience

Fair justice to be done.

→ When no law or custom existed Courts decided fairly by applying the principles of natural justice.

Equity (Fair & just (reasonable).

Some of judicial Precedents

Gita Hariharan Vs R.B.I (1999)

Guardianship rights under Hindu law

Ms. Gita hariharan challenged the specific provisions of Hindu Minority & Guardianship Act, 1956 & the Guardians & Wards Act, 1890.

Whether a mother could act as a natural guardian of her child without the father's consent?

Especially after the father's death?

Ms. Gita hariharan married Dr. Mohan Ram
↓ (divorce was pending)
had a Minor child

Ms. Hariharan applied ~~for~~ g.p. relief bonds in her sons name to RBI

she has mentioned herself as the child's natural guardian in the application.

↓

Rejected by RBI on the grounds that the minor child's natural guardian was his father.

↓

Hence, she had to get a signature from the child's father (or) a certificate of guardianship in her favour from a competent authority.

Therefore petitioner filed a writ petition challenging the constitutional validity of Sec 2(a) of Hindu Minority & Guardianship Act 1956,

↓

which prescribed a father as a son's natural guardian & provide a mother with such rights of guardianship after the father

she contended that the said provisions violated the right to equality under Article 14 & 15 of the constitution.

Judgment

Hon'ble Apex court held that

↓

gave equal guardianship rights for the father & mother.

Mother & Father can be natural guardian for a child & no parent can has preferential right over other regarding guardian. ship of a child.

⇒ Welfare of child must be the fundamental Criteria.

Vineeta Sharma Vs Rakesh Sharma

Daughters have equal coparcenary rights in their father's property, including in the case where the father passed away before the amendment 2005.

Schools of Hindu Law

- Mitakshara.s
  - 1. Benaras.s
  - 2. Mithila.s
  - 3. Maharashtra/Bombay.s
  - 4. Dravida or Madras.s
  - 5. punjab.s
- Dayabhaga.s
  - Bengal

Though all sub-schools are based on mitakshara, they differ in inheritance rules women's property & adoption.

Agnate

father
Son
grandson

Male connect

Cognate

father
daughter
grand son

(Co-parcenary – joint ownership in ancestral property)

Mitakshara School

→ Derived from commentary Mitakshara written by 'Vijnaneshwara' or 'Yajnavalkya Smriti'.

→ Oldest & most widely followed School in India

→ followed in all parts of India except Bengal & Assam

Main features

1. Joint family system – Mitakshara School emphasize the coparcenary system.

2. Right By birth - A son acquires an interest in ancestral property by birth. (not on the father's death)

3. Father has Limited rights - He cannot dispose of entire joint family property without the consent of sons.

4 Property devolution - By doctrine of Survivorship. (i-e when one coparcener dies, his share passes automatically to the Surviving coparceners.

5. Limited rights of females

6. Adopted son acquires the same rights as a natural born son.

Dayabhaga School

→ Founded by Jimutavahana

→ Commentary based on Manu & yajnavalkya Smriti

Main features

1. No right by Birth

→ A Son has no right in ancestral property by birth.

→ He acquires it only after his father's death

2. father's absolute power

→ Father has full power to dispose of property during his life time.

3. Doctrine of Succession

→ property passes to heirs by succession not by survivorship.

4 Widows right recognized

→ Widow can inherit her husbands property

5 Seperate ownership

→ Each heir has a sep & defined shares after succession.

6. No concept of Coparcenary by birth

→ Coparcenary arises only after death of the father.

Key differences

Basis	Mitakshara's	Dayabhaga's
1. Founder	Vijnaneshwara	Jimutavahana
2. Commentary	Yajnavalkya Smriti	on Various Sm Manu & Yajna
3. Rights in property	By birth	On death of father.
4. Fathers power towards property (transfer)	Limited	Absolute
5. Devolut of property	By Survivorship	By Succession
6. Female rights	Limited	Recognized widow inheritance.
7. Coparcenary	By birth	After death of father.
8. Areas applicable	All over India except Assam & Bengal	Only in Benga & Assam.

Hindu joint family

It is fundamental concept of Hindu family law.

In **Raghunabhai Vs Lala Laxmidasayana**

It is held that a family presumed to be joint family if it is joint in affairs of food, worship & estate.

In Chottey lal & Ors V Jhandey lal & Anr

It was held that even if a family is not joint in food & wish i-e even they live seperately they constitute a joint hindu family provided they are joint in the estate.

→ A joint hindu family is neither a Corporation nor a juristic person as they do not have sep legal entity from that of its members.

It is a unit represented by the karta of the family in all matters.

Composition

→ It consists of all family members i.e All the male descendents lineally upto any generation from a common ancestor; together with their mothers, wives, widows & Unmarried daughters.

→ A daughter remains as a part of her parents joint family, till the time she is married.

↓

→ Once she gets married, she becomes a part of her husbands joint hindu family.

↓

If daughter deserted by her husband or becomes widow & returns to her father's

home permanently.

↓

she again becomes a part of that

Joint hindu family.

↓

But, her children, remain a part of their

father's joint hindu family.

Gur Hazain Das Vs Gur Tahal Das

Even an illegitimate son becomes part of

H.J.F

Beginning

→ Without a CA HJF Cannot be brought into existence.

→ So, presence of a Common ancestor is a necessity for its beginig.

→ but its not necessary for its continuance.

ie the death of a CA does not bring the HJF to an end.

Note :- Upper links of family are removed

After Marg ⇒ & lower links of family are added.

Ceasing of Mem to be a part of HJF

1. By conversion to another religion / faith
2. By Marg to a non-Hindu.
3. By giving Adoption to another
4. By marriage of a daughter.

Position when there is only one male mem in the family.

In such case HJF can still continue to function.

As requirement of a male member is essential to start a HJF & not for its

continuance.

→ It is not necessary to have at least two or more male mem's in the family to make it a Hindu undivided family held in.

↓

CIT Vs Gomedalli Lakshminarayan

Also held even if Coparcenary does not exists in a family still that family continues to be a hindu undivided family.

Posit" when these are only female members (widow).

In the case of

CIT Vs Swaran kumari

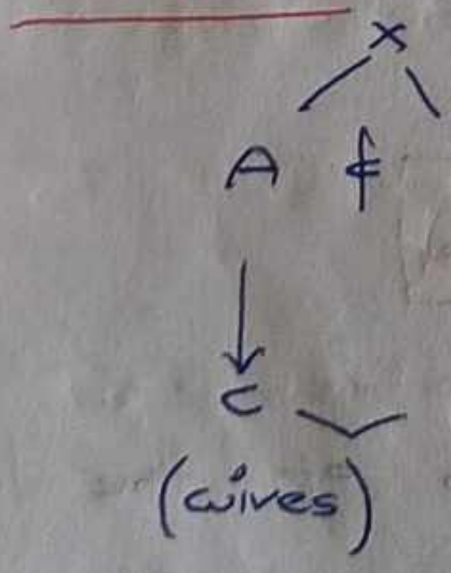
SC held that on the death of the last surviving male member, the other family mem's can continue to be HJF,

even if they are not coparceners the death of male member is a self declaratory fact that there was an existence of male members in the joint family.

Attorney General of Ceylon Vs Arunachalam chettiar

It was held that so long as the female members of the family can add a male member to the family, a HJF doesn't come to an end.

illustration



four of them constitute HJF

A & B died in car accident

then C & D can continue HJF if

either of them pregnant with the child of their husband or if they decide to adopt a male child.

Position when there are only daughters

→ As discussed female should have capacity to add a male member in order to continue the HJF.

→ However, before 1956 daughters did not have the capacity to add male mem to her fathers JF

↓

Reason is that she could give birth to a legitimate child only after her marriage & once she is married she becomes a part of her husband HJF

→ Also before 1956 Hindu Adopt^n & Maintenance Act, a single women doesn't has right to adopt.

- After the act now a woman i.e an married daughter can add a male mem to her father's HJF. ~~can't~~

(Note:- As per law status of a adopted child is the same as that of a child born into the family).

Position where there are only husband & Wife

As there is a chance of adding a male member or coparceners to the family they can constitute a HJF.

There is a conflict in the judicial opinion on the quest^{n}, whether husband & wife can form a joint family as per revenue statutes to take advantage of the exemption form tax as HUF?

T. Srinivasan Vs CIT

A partn took place in a JHF & Son took his share he filed his return (Submitted Status of income) as individual unit he got married.

The quest" came into consideratn when his wife was pregnant?

It was held that only when the son is born, he becomes a member of that HJF

Coparcenary A joint ownership of an Ancestral property property related matters only i-e property of a HJF. (A person who has a birthright & ownership legal interest by birth in ancestral interest in coparcenary property) property

Composition

Unlike HJF Coparcenary consists of all male lineal descendants upto three generations from the last holder of the property.

Father ① → Son ②
(Lastholder) ↓
Son's son ③
↓
Son's Son's Sons ④

→ Every mem of Coparcener is related to each other by blood or valid adoption.

→ Female not a coparcener.
After 2005 A she is.

Beginning

Like HJF Senior most male is compulsory to start Coparcenery.

End

Coparcenery comes to an end either by partit^{n} or by death of male members of Sole surv Coparcener.

→ An insane Son is also a Coparcener but no right to Ask for partition

→ Rule of Survivorship applies to Coparcenary Property.

i-e when Coparcener dies his interest in joint family property devolves on surviving Coparcener not by rule of Succession.

Mora Vishnawath Vs Ganesh Vithal

Coparcenary extends to 4 degrees from last owner.

Differences

Joint H.F	Coparcenary
1. Includes all males, wives, widow, mother & Unmarried daughters	1. only 3 males from last holder
2. Extends to any no. of generat^ns.	2. 4 generat^ns inclusive of last holde
3. Every family mem Can be part of it i-e females & illegitimate Sons.	3. Only males. After 2005 daughte
4. Even after death of all males HJF Continues	4. When all males dies it ends.
5. Existence of property not essential	5. Very essential.
6. Rights determined by law of Succes^n.	6. By survivorship

7. Mems have limited rights of maintenance & Marg expenses of daughters.	7. Rights of coparcens are wide. Right to partition, alienate.
8. Every HJF is not a Coparcenary	8. Every coparcenary is a JHF.

Hindu Joint family Vs Coparcenary property

property under HJF

1. Unity of Ownership

→ property is owned collectively by all.

→ No individual has a specific, quantifiable share in the property unless a partition takes place.

→ The karta, usually the eldest male, manages the family & property.

4. Role of Karta

→ Karta is the head of HJF (usually the eldest male)

→ has extensives power to manage the family affairs & property.

→ Karta Acts as manager of HJF & has authority to make decisions concerning the family's economic & legal matters.

However this powers comes with certain limitations & responsibilities.

In Nopany Investments Pvt Ltd Vs Satok Singh (HUF)

SC emphasized that Karta has the authority to manage the property, but he cannot alienate JF property without Consent of other mem's (coparceners).

→ unless such alienat° is made under the legal necessity for the benefit of family.

→ the karta also represents the family in all transactions & legal proceedings, binding the family by his actions, but his decisions must always be aligned with the welfare of the family.

Coparcenary under mitakshara hindu law

→ Consists of Father

↓

Son

↓

Son's son

↓

Son's Son's Son

→ It continues upto 4 gen

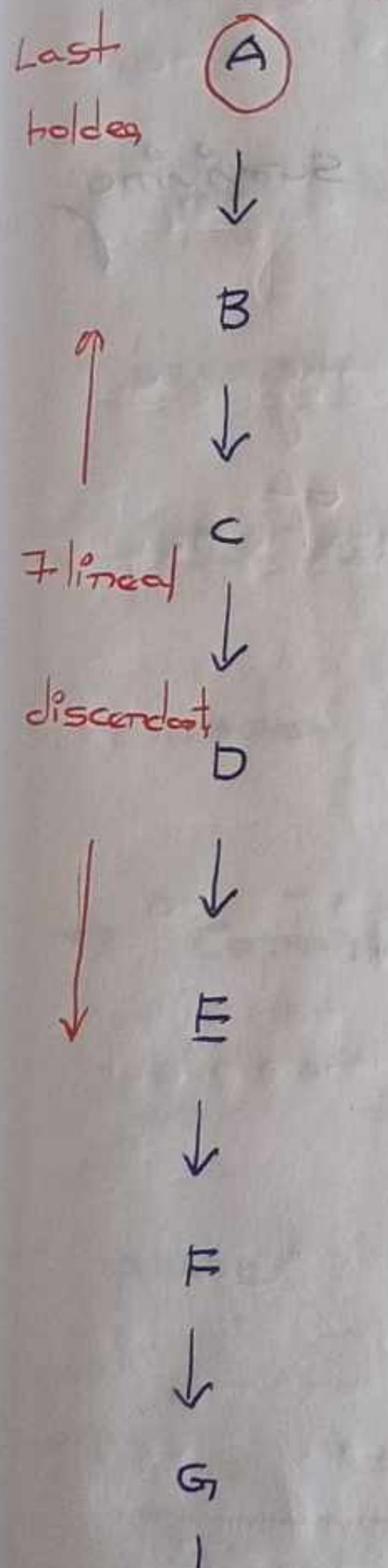
→ To constitute coparcenary existence of father son relationship is not necessary.

→ Coparcenary can consists of grand father, grandson, or of brothers, uncles and nephew son on.

Note :- The rule is that so long as one is not removed by more than four degrees from the last holder of property he will be a coparcener.

Last holder :- Senior most living lineal male ancestor.

illustration / Ex :-



1) Here ABCD are coparceners.

2) If A dies

now B becomes last holder

B,C,D,E are coparceners

FGH are not coparceners.

3) If B dies before A

now A, CD are coparceners

as A continues to be last holder & E is removed by five degrees.

4) If C also dies A & D are (C)

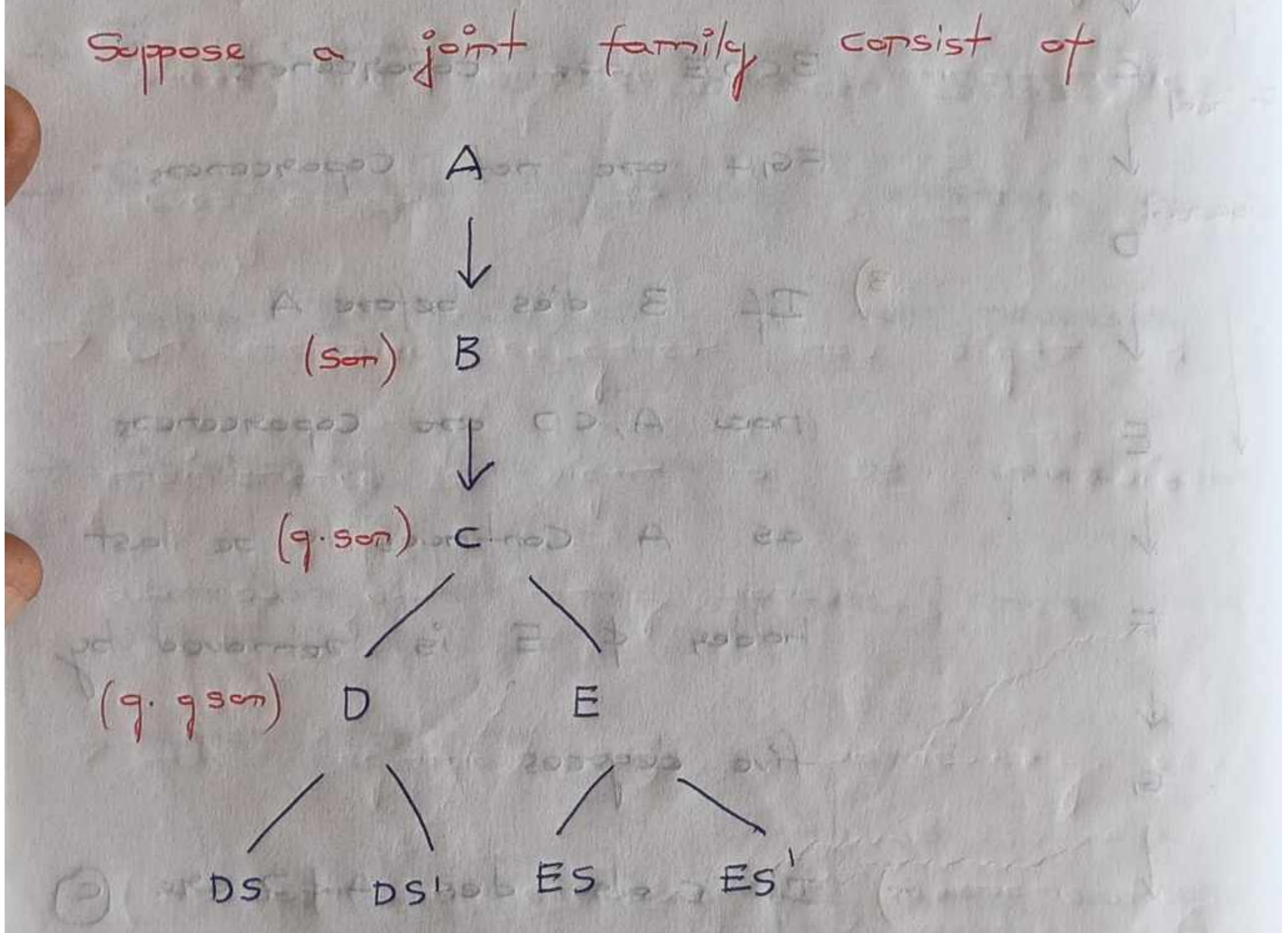
5) Suppose if A dies before D

now D is last holder so DEFG are Coparceners.

6) But if D dies before A it will be disaster to EFG. (they will be removed by five degrees.

7) If all dies & A remains he is considered as a sole surviving Coparcener.

Suppose a joint family consist of



i) If B dies first then C dies

→ A, D, E are coparceners.

2) Now at this stage E dies now A & D are coparceners. ES & ES' will be removed by more than five degrees from last holder of property.

3) If A dies than D & DS, DS' will become coparceners.

4) ES & ES' will ~~form~~ sep coparcenary under E's line.

⇒ Coparcener has right by birth in joint family property until partit" takes place.

Rights of Maintenance

→ Every coparcener & every mem of a Joint family has right of & maintenance out of joint family property.

→ Right of maintenance continues through life of members so long as family remains joint.

→ Female mem's & other males who do not get a share on partit" either bcoz they are disqualified from getting a share are entitled to maintenance even after partit".

→ Un married daughter has right to maintenance & right to be married out of joint family funds.

→ All illegitimate sons / particularly dasipatra (i-e born to exclusively & permanently kept Concubine) always be regarded as mem of putative fathers JF & has

right to be maintained out of joint family funds during his entire life.

Coparcenary b/w Sane & Insane

↓

Rights by birth

Under Hindu law an insane coparcener has no right to claim partition & has no right to a share if partit^n takes place, but he is not ceased to be a coparcener i-e if he cured of insanity both rights are revived.

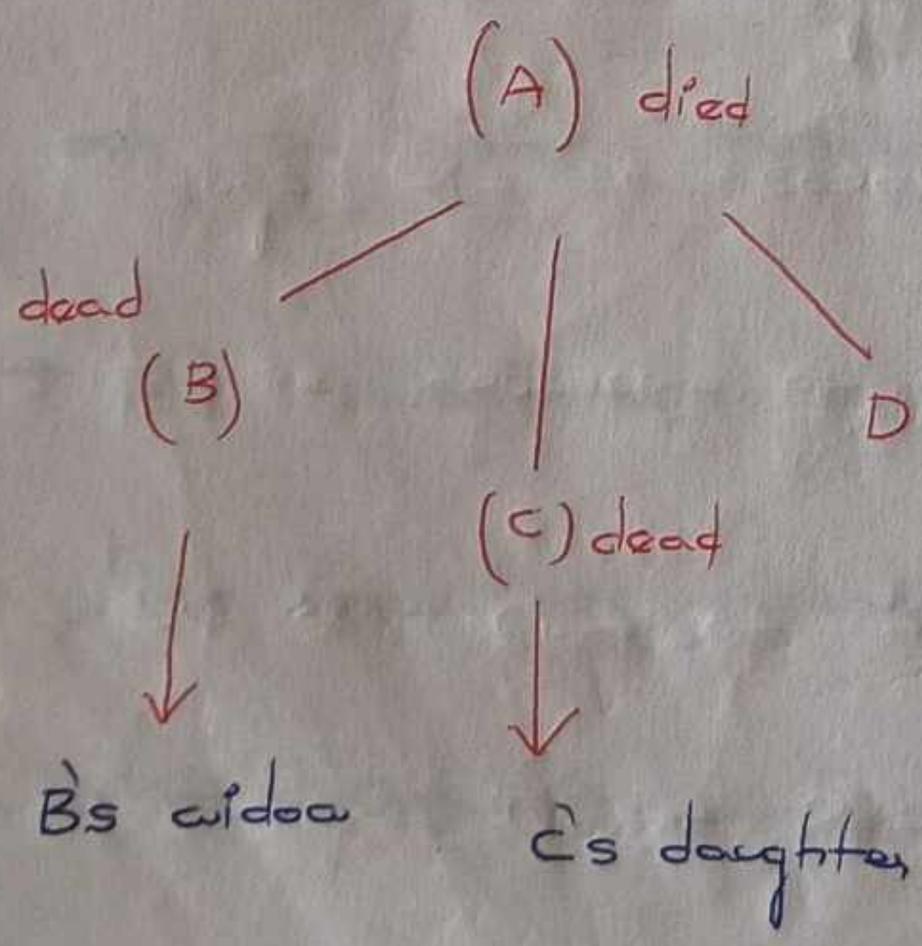
Coparcenary under dayabhaga IF

Sons have no right by birth i-e only after death of his father.

In dayabhaga all properties whether self acquired or coparcenary devolve by succes

On the death of Son his heir will Succeed (If any widow or daughter leaving behind they will become coparcener

In dayabhaga female can also be a Coparce



→ on A's death B, C, D becomes Copar

→ If B dies then C D becomes Coparcen

characteristics of Coparcenary

1. (prior to 2005) Limited membership

2. 4 generations

3. Birth right

4. before 2005 no female as Coparcener

5. Right to partition.

(After 2005 male & female coparcener has right to demand partit^{n} of JF property)

Kalyani (Dead) by LR's V. Narayan

SC held that a coparcener has the right to severe his interest from joint family by seeking partition & such right is absolute, no consent required from other family members.

6. Survivorship rule (before 2005A).

KARTA (Vast powers with certain limitations)

Who can be karta?

→ Senior most male, as long as alive, even aged, infirmed he is entitled to kartaship

→ So long as father is alive, he is karta after his death, it passes to the senior most male mem (even uncle).

Female mem's as karta

At one time Nagpur HC held that mother though not a coparcener, can be karta in the absence of adult male members.

SC in Com of income tax (CIT) Vs Seth Govind Ram

After reviewing the authorities held that

mother & any female could not be karta.

Gangoji Vs H K channappa

Karnataka HC held that mother as a natural guardian of her miner sons can manage the joint family property & the appointment of guardian by the court could not be justified.

Position of karta

Relation b/w him & other family men is not of principal and agent or of partners.

though he stands in fiduciary relationship with other members, he is not a trustee.

His powers are wide.

Karta's Liabilities

→ He is responsible to maintain all membes of family.

→ Responsible for marriage of all unmarried members of JF. (especially daughters)

→ He represents the family (sole representative).

→ He has to pay taxes & dues on behalf of the family.

→ He can be sued for all his dealings on behalf of the family.

Powers of Karta

1. Powers of management

→ He has absolute authority to manage the family property & affairs.

→ others cannot interfere (even they disapp)

2. Power to represent the family

Karta represents the entire family in legal Social & business matters

He can sue & be sued on behalf of family

3. Power to Alienate JF property

Karta can sell gift, mortgage JFP only under certain legal necessities.

(i) Legal necessity (i-e paying of debts, marg expens, medical needs)

(ii) Benefit of estate (Improving or preserving Jfamily property)

(iii) Indispensible religious duties (Like family rituals or obligations)

4. Power to Contract debts

→ Karta can borrow money for family purposes.

→ The debt will bind the entire joint family property, if incurred for family benefit)

5. Power of Compromise

Karta can enter into compromises in family disputes / Litigation if it benefits the family.

6. power to refer dispute to arbitration.

The award of arbitrator is binding on JF

7. power to Acknowledge debts & accounts

Sign receipts or settle accounts on behalf of family.

8. power to spend family income

He decides the distribut" of income, maintenance & expenses.

No mem can demand a fixed share unless partitioned.

9. Power over income & business

He may start, run or close family business & control its profits.

(PI-4)

27/10

Doctrine of pious obligation

In the Hindu legal system & mythology, it is considered essential to repay all debts before the death.

If deceased was not able to do so before his / her death, the responsibility of the same, as per hindu law lies on the son to pay off the debts so as to provide a way to heaven to deceased.

As per Brihaspati (teacher, guru), if a person dies without repaying his debts, then will be born as a servant or slave or woman or quadruped (four footed anima) in the creditors house.

The doctrine of pious obligation covers those debts which are incurred for legal &

moral purposes & not for something which is considered illegal or immoral in the eyes of law & Society at large.

Meaning

→ pious means something religious & sacred obligation means duty.

→ The doctrine of pious obligat° means a moral & religious duty that is imposed on the son to repay the debts of his deceased father, grand father or great grand father

Son's liability to pay debts

The liability under the p.o is not personal in nature, as it is restricted to the amount of share obtained in ancestral property.

As per mitakshara coparcenary right of property & is upto three generations.
by birth

→ Thus, these three generations of male descendants are liable under the doctrine of Pa

→ Moreover, the liability to pay off father's, g.f's or great g.f's is restricted to the principal amount only & not interest on it.

→ pious obligat not recognised under Dhayabhaga

Why sons are preferred

Bcoz women were often percieved as incapab of taking such responsibilities & they do not have right by birth to ancestral property.

Debts must be

↓

Vyavahaarika i-e (debts only for legal purpos not Avyavahaarika debts.

(burden of proof lies on son to proove the debt contracted with creditor is Avyava -haarika

Debts must be religious

→ should not be immoral, unlawful or sinful debt

→ Son has to pay off father's debts which are religious nature.

→ If the son pays irreligious debts, then it is believed that he is contributing to his father's religious acts.

Father's power of Alienation for Antecedent debts

Dharmasastras imposed the liability to pay father's debts on the Sons only after death of father, but by judicial voices (judges) this has been extended & sons now are liable to pay the father's debts during the father's lifetime.

The doctrine further extends that the father himself can alienate the joint family property for the discharge of his personal debt & the sons can challenge it only if the debt is tainted.

Antecedent debt

Lord dunedin of privy council defined it

(a) the debt must be prior in time &

(b) the debt must be prior in fact

⇒ First requirement point of time, debt & alienat° cannot be made simultaneously

If debt taken on 1st Jan 2025

properties are alienated on 1st oct 2025

debt is prior in time.

⇒ Second requirement debt & alienations should be two independent & Seperate transactions.

Abolition of doctrine of pious obligation

After commencement of HSA 2005A,

According to Sec6(4) of the Act, no court shall recognize any right to proceed against a son, grand son or great grand son for the recovery of any debt from Father, g.father, g.g.Father Solely on the ground of pious obligation. If any debt contracted before the 2005 he has limited pious obligations.

28/10

Partition

↓

Brings the joint family to an end. Stats.

Under the mitakshaa school, partition means

(i) Severance of stats or interest

(ii) Actual division of property in accordance with the shares so specified (Metes & bounds) known as

⇒ Under dayabhaga law, partition means only division of property by metes & bounds.

↓

Subject matter of partition

The joint family property is the subject to partition.

The individual properties of Coparceners is not subject partition

→ If a joint family is in possession of a property held by it as the permanent lease, such property is also subject to partition among the coparceners.

Subba Roa V Antaramayya 1955 MadrasHC

MHC held that permanent lease hold property held by a joint family can be partioned, as the right of enjoyment is transferable & heritable.

Also under Sec 6 of T.P Act, property which may be transferred includes any interest property unless it is non transferable.

Exception:- If the lease is not permanent i-e temporary or personal lease, the lessee has no heritable or transferable rights such property can't be partitioned.

properties which cannot be partioned

clothes / garments
Wearing apparel, carriages, vehicle drawn by horse, riding horses,
grassland to feed animals
ornaments, cooked food, water, pastures, road,
female slaves, dwelling houses, garden, utensils,
documents, right to way, staircases, wells,
steps right of way
tanks, etc.

↓

because they are indivisible natur.

→ Some of these are indivisible by natur
like staircases, right to way, wells, while
others in certain cases are capable of divisb
Some adjustment can be made among
coparceners.

3 methods of adjustments can be made

(1) Some of these properties may be enjoye
by the coparceners jointly or by turns.

(2) One of the 'C' may keep the property
& the value of it adjusted with other prop

to other coparceners.

(3) or some of these properties may be sold & the proceeds distributed among 'C's.

Liabilities attached to the property

(Before division takes place)

1) Debts

provisions for outstanding debts of father or karta taken on behalf or for the purpose JHF.

2) Maintenance

. There are certain members of JF who do not take share on partif but have right to be maintained out of the JF property.

Such prop persons are:

(a) disqualified coparceners & their immediate depends such as wife, daughter, son & certain circumstances, illegitimate sons.

(b) Mother, step mother, grand mother & other females

(c) Un married sisters till they are married.

(d) Widowed daughters of deceased coparceners, when they are entitled to be maintained out of JF assets

Marriage expenses of daughters

→ In case of family consisting of father & son provision for marriage expenses of daughters of the father

→ In case of family of brothers, a provision should be made for sisters.

performance of ceremonies

If a partition takes place among the brothers, a provision has to be made for the funeral expenses of their mothers.

Similarly to perform other essential ceremonies

persons who have a right to partition & share on partition

Both under mitakshara & dayabhaga school, every coparcener has a right to partition & is entitled to share.

A Minor coparcener can also ask for partition.

Every coparcener ~~has~~ ~~ask~~ for partit" except right

1. an Unqualified coparcener
2. In Bombay school, sons cannot ask for partit" against father (father) until he is joint with his own father (during father's life time he can't ask to right) or collaterals (Brother's)

persons who have right to partition.

1. Father.

→ father under mitakshara School, has not only right to partition but also has power to effect partif among sons'

→ Father can impose even a partial partition b/w his minor sons & himself.

→ However he must act bonafide.

He should not be unfair to any one

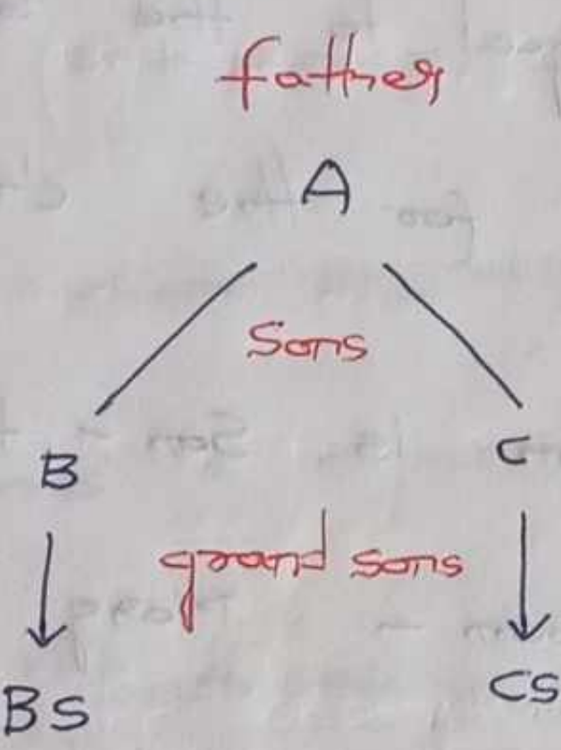
If the division of property made by the father is unequal, or fraudulent or by favouritism, the partition can be re-opened. (A suit to re-open)

2. Son, grand son & great grand son

Under Mitakshara school, son, son's son & Son's son's son have a right to partition

Bombay school Son has no right to partition if father is joint with his own father/collates the other school do not recognize this rule Son has unqualified right to partition.

eg:- A joint family consists of



Under bombay school Bs & Cs cannot ask for partit in box examples.

1— because in the former, their fathers B & C joint with their own fathers

2— While in the latter, their fathers B & C joint with each other.

Son conceived at the time of partition

but born after partition.

↓

If pregnacy is known postif should be

postponed till the child is born

But if coparceners do not agree to this

then a share equal to the share of a son

should be reserved for the child in womb

If child is born is Son - takes share

If daughter born - Marg provision. of

of share & surplus divided among coparceners

If no shared is reserved for Son after

his birth he can re-open the matter for

postif.

Son begotten & born after partition

In the case, the mitakshaaa's general rule applies.

Two situations

1. When the father has taken his share in partion

↓

taken his share or reserved a share for himself

Son becomes a coparcener with his father

After the death of his father takes not only his estate by survivorship, but also inherits the entire sep property of his father

When father doesn't taken share

After son born he has right to get partition re-opened.

Son begotten & born after partition

In the case, the mitakshaaa's general rule applies.

Two situations

1. When the father has taken his share in partion

↓

taken his share or received a share for himself

Son becomes a coparcener with this father

After the death of his father takes not only his estate by survivorship, but also inherits the entire sep property of his father

When father doesn't taken share

After son born he has right to get partition re-opened.

Adopted son

Dharmashastra deallt posif of A·S in 2 A·P

1) When their is natural son (Same right to partip but not entitled to Same shares)

2) When their is no such son.

(posif of A·p son same as Natural son)

Illegitimate son

(1) Dasiputra (permanent concubine)

(2) Illegitimate son born of woman who is not dasi

In both cases illegitimate son doesn't entitle to partit^n he entitle only to maintenance.

But Sudra - dasiputra was given some Prophetic as father has power to give share if hi dies has no right to partip but is entitled to maintenance out of joint family estate if father doesn't have sep property

In dayabhaga the following doesn't have right to partition.

Same as mitakshara

1) illegitimate son of sudra becomes coparcenery with legitimate sons they can inherit after death of his father.

2) Minor has right to partition

3) Absent coparcenery - when a coparcenery is absent at the time of partit", a share has reserved for him"

If not he ~~is~~ has right to get partition re-opened.

persons who have no right to partit" but who are entitled to a share ~~of~~ of partit" takes place.

(Here the matter is dicussed apart from Hindu female's right to partit" under the

Hindu Women's Right to Property Act, 1937 or Hindu Succession Act, 1956.

1) In dravida school no female is entitled to share on partition

But in kerala, these females are entitled to a share on partition.

2) Whenever father's wife, or a widowed mother is given a share on partition & also she has recieved sridhan from her husband or father in law, her share is subject to deduction to the extent of value of sridhan recieved by her.

eg for instance → she is entitled to 10,000 as her share on partition, she has got 5000 as sridhan from her husband the entitle only 5kaooth share in partition.

No provision of Hind succession Act, 1956, effects adversely her righ to take a share on partif.

Her share becomes absolute estate by virtue of S.14 H.SA 1956.

Father's wife

If partif takes place b/w her husband & his son, wife is entitled to share equal share of son.

→ If more wifes each is entitled to the share equal to the share of a son (even if she doesn't has own son).

→ If no share is alloced to her, she can get partition re-opened.

Under dayabhaga she has no such rights.

Mother

A widowed mother has a right to take a share equal to the share of a son if a partition takes place among sons

(Right across only when partition is made by metes & bounds)

(only right to share on partition not to demand

Under mitakshara school, when partition takes place after the death of father among sons, the mother including a stepmother even if she is childless, entitled to a share

↓

take share equal to that of son's share

Under dayabhaga childless step mother is not entitled to share on partition.

Mother's right to share on partit" continues when partit" takes place b/w her husband & children

Daughters have right to demand partition.

Grand mother

In Mitakshara S paternal grand mother & step grand mother are entitled to a share on partition

. when partit" takes place b/w her grandsons her son (even if/ded) entitled to equal share of grand son

Daughters

pachi kaishnamma V kunjaan kaishnan (Kerala H.C, 1982).

A daughter claimed a share equal to the son in q N° portion. But she failed to

prove this custom.

It seem if such custom is established she can claim share).

Sec under the uncodified hindu law, the custom still overrides rule of Hindu law.

Modes of partition

1. By suit
2. By agreement b/w parties
3. Oral partition.
4. By arbitration
5. By conduct (Sep in food, worship, Sep enjoyment of property etc)
6. By ~~Automatic~~ Severe By father (Kartha)
7. By Conversion to another religion.

→ This leads to automatic severance of status from day of Conversion. However, he is entitled to recieve a share

from the property.

partial partition

priv Council in Rama Litga Vs Hazayp said it open to coparceners to severa their interest in respect of some properties

→ As a general rule, no one can impose partit on others.

→ Similarly no one can impose total partit on others.

Re-opening of partition

Can be re-opened if it was obtained by (1) fraud

(2) Son in womb

(3) Disqualified persons

(4) Son conceived & born after partit.

(If father does not take his share on partition)

(5) Adopted Son (After partiff adopted by widow)

(6) Minor Coparcener (If partiff was infant)

Dealing House - House occupied by J.F

partition - Severance of joint family status

~~Shares~~ End of joint ownership of Coparcenary property

It converts joint property into Separate property.

partition → Separation of ownership

Share - portion / ~~Interest~~ that each Coparcener is entitled ~~to~~ in the JF property.

ALIENATION

Alienation means transfer of property.

→ Under hindu law, Neither karta nor any coparcener singly possesses power of alienat" over JFP or over his interest in JFP.

→ Though under dayabhaga school a coparcener has righ of alienat" over his interest in JFP.

→ However under certain circumstances, such alienation can be made under mitakshara school also.

I. fathers power of alienation

Under Mitakshara father has full power of alienat" over his seperate property, both immovable & movable.

Under Dayabhaga father has full power of alienation over all the properties, whether

Self acquired or ancestral.

Ordinarily Mitakshara father has no power of alienation of JF properties.

But he can alienate JFP by way of

1. Gift of love & affection &
2. for discharge of his personal debts.

Gifts of love & affection

↓

→ of movable joint F.P

To :- (i) own wife

(ii) Daughter

(iii) Son in law (or)

(iv) Son

(v) daughter (or)

(vi) to any other near relation.

Consists of

(i) Jewels

(ii) silver or gold ornaments.

(iii) clothing

(iv) Cash (or)

(v) Any other moveable property.

⇒ Such gifts are usually made on occassions like marriage, upanayana, mundana (head ceremony) or when the daughter after marriage visits paternal home, or when child is born to her.

2 Conditions

(1) It should be gift of love & affection

(2) the gift should be of a small portion of movable JFP.

Kartàs power of alienation

Usually an individual coparcener including karta cannot dispose of JPP without obtaining consent of all other coparceners.

→ According to Vijnaneshwara, under 3 exceptional circumstances, the alienation of JFP property by an individual is possible. (on every individual)

1. Apatkale i-e during distress (debt which is not illegal)
2. Kutumbarthe i-e for the sake of the family
3. Dharmarthe i-e for disposing of indispensable duties

With time this has undergone modification.

(1) Firstly, the alienation power is not exercisable by any other family member, except the karta.

(2) Secondly JFP can be alienated for the following three purposes only.

(a) Legal necessity

(b) Benefit of estate

(c) Acts of indispensable duty

↓

→ Gradha

→ Upanayanama

& performance of other necessary samskaras.

grihapraveasam etc

→ performance of marg particularly of daughters. which also includes under legal necessity.

partial Necessity

Some times it is not possible to alienate the property for the precise amount.

Radha

In Krishnadas Vs Kaluram SC 1967

the privy council Apex Court said sale will be valid only if the purchaser acts in good fath

& after due inquiry able show there is legal necessity alienat is valid

→ When karta decides to raise money by mortgage of family property, he can borrow the precise amount required & therefore it is held valid. But where the coparceners will not be bound for any excess amount borrowed

Benares Bank V Hanman

→ If alienat by karta done without any legal Necessity or benefit of estate or in charge of indespensible duty it is not void but merely voidable at the instance of any coparceners.

Raghubanchmani Vs Ambika prasad SC 1971.

Coparceners power of alienation

Neither the mitakshara nor the Smritikars conferred any power of alienat" to coparceners over their undivided interest in JFP.

Alienation by coparceners in two ways

1. Involuntary (By operation of Law)

I. Alienat" means alienation of undivided interest in Execution proceedings

Limation :- decree cannot be executed against the interest of Coparcenery after his death But if his interest has been attached during his life time, it can be sold in Court sale after his death.

Voluntary · A

Sale & Mortgage

According to Bombay, Madras & Madhya pradesh H·C, a coparcener has power to sell, mortgage or otherwise alienate his undivided interest without consent of other coparceners.

But under mitakshara it was not permitted

Gifts

Under Mitakshara school a coparcener cannot dispose of his undivide interest in JFP by gift it is void

However he can make gift with Consent of other coparceners.

Renunciation

A coparcener has power to renounce his interest in JFP consent of others coparceners is not necessary.

Sole surviving coparceners right of alienation

(When all C die except one)

When JFP passes into the hands of such coparceners, it turns into seperate property, provide that such coparcener is sonless.

Based on various judicial decisions there are 3 views in relat to power of Sole Surviving coparcener in alienating a property of HJF.

1. A Sole surviving Coparcener is fully entitled to alienate the JF property. However if at the time of such alienation, another C is present in the womb, then Coparcener can challenge the alienat^{n} on his birth or ratify it after attaining the age of majority.

2. The sole S Coparcener's power of alienat^{n} is unaffected by any subsequent adopt^{n} of a son by widow of another Coparcener

3. The S.S C cannot alienate the interest of any female there such interest has been vested on her by virtue of Sec 6 HSA 1956.

He can also alienate the property by will

challenge to Alienation

If there is any improper alienat" it can be challenged.

→ When ever an alienation is challenged, the burden of proof is on alienee to show that it was for a valid purpose

→ Adopted son has no right to challenge

→ Coparcener who was in womb at the time of alienation after his birth can challenge

→ After born son cannot challenge. But if an alienat" is made by a father who has sons & before all sons die, another son is born to him, then after death of all son, subsequently born son can challenge alienation provided it is not barred by limitation.

Shivaj Vs Murlidhar 1954 Bombay HC